

The following rule also remains in force, except, like the above, as the "plea."

That no demurrer *or* plea shall be held bad and overruled upon argument only, because such demurrer *or* plea shall not cover so much of the Bill as it might by law have extended to.

1842.
114.
Demurrer or
plea not bad
for covering
less than it
might.

The answer is sworn before a Master of the Court, and manner of swearing it is prescribed by the following Order.

That in the case of answers the following oath or affirmation shall be administered to the party by the Master or Master Extraordinary.

Mode of taking
answers.

"You do swear, (or affirm as the case may be), that you have read (or heard read) this your answer subscribed by you, and that you know the contents thereof, and that the same is true of your own knowledge except as to matters which are therein stated upon your information and belief, and as to those matters you believe it to be true."

1837.
24.
Form of oath.

That the Master or Master Extraordinary shall then subscribe or endorse on the answer a Jurat in the following form:—

"The Defendant C—— D—— on the —— day of —— in the year of our Lord, &c., appeared before me at my chambers in the —— of —— in the District of —— and answered that he had read the foregoing answer, and signed the same in my presence, and thereupon was sworn (or affirmed) before me that he had read (or heard read) the foregoing answer subscribed by him, and that he knew the contents thereof, and that the same was true of his own knowledge except as to matters which are therein stated to be on his own information and belief, and as to those matters he believed it to be true."

That in the case of an illiterate Defendant the Jurat shall run thus:—

"The Defendant C—— D—— not being able to read or write, E——F——, Solicitor for the said Defendant, was sworn that he had truly and faithfully read the contents of this answer to the said C—— D—— and that he appeared perfectly to understand the same: and the said C—— D—— was thereupon sworn that he had heard the said answer, subscribed by him with

In case of an
illiterate per-
son.